

**Notice of Court Hearing and
Temporary Order to Change or End
Restraining Order**

Clerk stamps date here when form is filed.

Instructions: The person making the request must complete items ① and ②.
The court will complete the rest of this form.**① Protected Party**

Name: _____

② Restrained Party

Name: _____

③ Notice of Hearing

A court hearing is scheduled on the request to change or end a domestic violence restraining order:

Fill in court name and street address:

Superior Court of California, County of

Fill in case number:

Case Number:**The current restraining order remains in full force and effect. If the court granted temporary orders in ④ those orders and all nonconflicting orders must be followed until the court hearing below:**Date: _____ Time: _____
Dept.: _____ Room: _____

Name and address of court if different from above: _____

You may attend your court date remotely, such as by phone or videoconference. For more information, go to the court's website for the county listed above. To find the court's website, go to www.courts.ca.gov/find-my-court.htm.**④ ☐ Court's Decision on Request for Temporary Orders**a. ☐ **Denied.** Reasons for denial: _____b. ☐ **Granted.**

(1) The temporary orders listed below in b(2) (check all that apply):

- ☐ Have been requested by the protected party and are needed to prevent domestic violence.
- ☐ Are needed to help prevent (1) irreparable harm to a child in this case or (2) a child from being removed from California.

(2) **Temporary Orders**

The following temporary orders remain in full force and effect until the hearing listed in ③:

_____☐ Temporary orders listed on (give form number or name of attachment): _____**This is a Court Order.**

5 Service

- a. ☐ Protected person ☐ Restrained person must have the other party served with a copy of all the forms listed in **5** d by:
- b. (date of deadline): _____
- c. (1) ☐ This order can be served by mail because it is a request by the protected person and does not include temporary orders.
(2) ☐ This order must be personally served because it is a request by the restrained person.
(3) ☐ This order must be personally served because the court has granted temporary orders.
- d. Forms to serve:
- DV-300, *Request to Change or End Restraining Order*;
 - DV-310, *Notice of Court Hearing and Temporary Order to Change or End Restraining Order* (this form); and
 - DV-320, *Response to Request to Change or End Restraining Order* (leave blank).

6 No Fee to Serve (Notify) Order

The sheriff or marshal will serve this order for free. If you want the sheriff to serve your papers, (1) complete form [SER-001](#), *Request for Sheriff to Serve Court Papers*, and (2) give the completed form and a copy of this order to the sheriff.

7 ☐ Attached Pages

All of the attached pages are part of this order.

- a. Number of pages attached to this three-page form: _____
- b. Attachments include forms (check all that apply):
☐ DV-140 ☐ DV-145 ☐ Other: _____

Judge's Signature

Date: _____

Judge or Judicial Officer

This is a Court Order.



To Person in ②

- **Respond in writing (optional):** You can respond in writing by completing form [DV-320](#), *Response to Request to Change or End Restraining Order*. File the original with the court, and have someone 18 or over—**not you**—mail a copy of it to the other party before the hearing. Also file form [DV-250](#), *Proof of Service by Mail*, with the court before the hearing, and bring a copy to the court hearing.
- **At the hearing:** Whether or not you respond in writing, attend the hearing if you want the judge to hear from you before making a decision. At the hearing, tell the judge why you agree or disagree with the request. Bring any evidence or witnesses you have.

**Request for Accommodations**

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office or go to www.courts.ca.gov/forms.htm for *Disability Accommodation Request* (form [MC-410](#)). (Civil Code section 54.8.)

(Clerk will fill out this part.)

Instructions to Clerk: If the court made temporary orders in ④, the court must enter this order into CLETS or send this order to law enforcement to enter into CLETS. This must be done within one business day from the day the order is made. You must give up to three free (certified, stamped, and endorsed) copies of this order to the protected party.

Clerk's Certificate
[seal]

—Clerk's Certificate—

I certify that this *Notice of Court Hearing and Temporary Order to Change or End Restraining Order* is a true and correct copy of the original on file in the court.

Date: _____ Clerk, by _____, Deputy

This is a Court Order.